

Motion to Compel Further Responses to Defendant's Special Interrogatories, Set One, is MOOT.

Request for Sanctions GRANTED. Plaintiff to pay \$600 + 60 (filing fees) for a total of \$660, within 30 days to Counsel for Defendants.

Trial Setting Conference is continued to 12.03.26. Parties are ordered to submit a JOINT Trial Setting Conference declaration, addressing the items previously ordered on 1.20.26. The joint declaration shall be on pleading paper, do not use form CM-110 that is for Case Management statements.

Order to Show Cause re TSC declaration is continued to 12.03.26. Failure to submit a timely joint TSC declaration will result in sanctions.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2504791	GARCIA VS TOP STONEWORKS INC.	MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO DEFENDANT'S REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE AND REQUEST FOR SANCTIONS AGAINST PLAINTIFF AND PLAINTIFF'S COUNSEL IN THE AMOUNT OF \$1827.50 BY 42ND PALM DESERT LLC

Tentative Ruling:

Motion to Compel Further Responses to Defendant's Request for Production of Documents, Set One, is MOOT.

Request for Sanctions GRANTED. Plaintiff to pay \$600 + 60 (filing fees) for a total of \$660, within 30 days to Counsel for Defendants.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2504791	GARCIA VS TOP STONEWORKS INC.	MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO DEFENDANT'S FORM INTERROGATORIES, SET ONE AND REQUEST FOR SANCTIONS AGAINST PLAINTIFF AND PLAINTIFF'S COUNSEL IN THE AMOUNT OF \$1827.50 BY 42ND PALM DESERT LLC

Tentative Ruling:

Motion to Compel Further Responses to Defendant's Form Interrogatories, Set One, is MOOT.

Request for Sanctions GRANTED. Plaintiff to pay \$600 + 60 (filing fees) for a total of \$660, within 30 days to Counsel for Defendants.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2505340	LEE VS OMNI RANCHO LAS PALMAS, LLC	MOTION TO STRIKE DEMURRER ON 2ND AMENDED COMPLAINT OF CASSANDRA J LEE

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (Civ. Proc. Code, § 430.10(e).) A demurrer tests the legal sufficiency of the pleading, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Id.*)

The elements of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.) Conduct must be "so extreme as to exceed all bounds of that usually tolerated in a civilized society." (*Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228, 1259.) "Only emotional distress of 'such substantial quantity or enduring quality' that an individual in civilized society should not be expected to endure it constitutes severe emotional distress." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) Facts regarding the nature, extent or duration of the alleged emotional distress should be pled in the complaint to support severe emotional distress. (*Ibid.*) "[W]hether conduct is outrageous is 'usually a question of fact' ... [However] many cases have dismissed intentional infliction of emotional distress cases on demurrer, concluding that the facts alleged do not amount to outrageous conduct as a matter of law." (*Bock v. Hansen* (2014) 225 Cal.App.4th 215, 235.)

3rd Cause of Action IIED:

Plaintiff's second amended complaint adds language identifying specific employees that are alleged to have ratified the conduct. (SAC ¶ 47.) Plaintiffs have alleged extreme and outrageous conduct, that Defendants had actual and constructive notice of the hotel rooms, including the subject room 2316, as numerous guests have complained about bed bugs. (SAC ¶¶36, 129.) Plaintiffs suffered hundreds of bed bug bites over their bodies which demonstrated a long-standing infestation. (SAC ¶40.) Plaintiffs contend the infestation occurred prior to their stay and has been a recurring problem as demonstrated through online reviews and prior lawsuits. (SAC ¶¶126-127.) Defendant argues that the prior *Mantzian* lawsuit involved an infestation prior to 2024. (SAC ¶127.) However, the additional facts added to the second amended complaint fail to show again, that Defendants knew that room 2316 was infested. Nothing to indicate Defendants acted with intent, or reckless disregard in assigning that specific room. Plaintiffs refer to consumer reviews, guest complaints and inspection reports and findings but fail to show how these were related to the room that Plaintiffs occupied. The reference